

Panna Lal Vishwakarma v. State of U.P. And Others

Allahabad High Court · Division Bench · 17 August 2012 · WRIT - C No. 38772 of 2012 · **Writ disposed; relegated to clause 6.5 with half-deposit stay of recovery.**

HEADNOTE

A writ to quash a recovery citation for electricity dues, where the consumer alleged undecided bill objections and a part-deposit with reconnection charges, was disposed without examining the bills. Disputed facts are to be raised by a complaint under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. On deposit of half the cited amount with the Executive Engineer within two weeks, coercive recovery is stayed until that complaint is decided within four weeks of filing; current bills remain payable.

FACTUAL SUMMARY

Panna Lal Vishwakarma challenged a citation dated 10 July 2012 for recovery of Rs. 1,25,025 as electricity dues. Counsel for the respondents, after instructions, submitted that the cited sum was unpaid electricity bills. The petitioner contended that he had objected to the bills, that those objections were never decided, and that on 7 January 2012 he had deposited Rs. 25,000 together with reconnection charges. He sought quashing of the recovery citation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-complaint-on-recovery-citation

HOLDING

Where a recovery citation for electricity dues turns on disputed facts, including alleged undecided bill objections, the writ court will not adjudicate the bills. The consumer's remedy is a complaint under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, which the Executive Engineer is to decide within four weeks of filing. If half the amount mentioned in the citation is deposited with the Executive Engineer within two weeks, no coercive steps shall be taken until that complaint is decided; thereafter the licensee may proceed in accordance with law. The complaint is to be filed within two weeks, and current bills remain payable. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 10 JULY 2012 RECOVERY CITATION AND OF THE UNDERLYING ELECTRICITY BILLS

The Court held that the issues require adjudication of facts on a paragraph 6.5 complaint and did not examine the bills or the citation on merits. ¶ 1